

SUPREME COURT STATE OF NEW YORK
COUNTY OF RICHMOND

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DIANE HAYDEN

Plaintiff,

-against-

CITY OF NEW YORK, JANINE SARTINI,
Individually, JONATHAN BAER, Individually, and
JOHN and JANE DOE 1 through 10, Individually,
(the names John and Jane Doe being fictitious, as the
true names are presently unknown),

Defendants.

SUMMONS

Index No.:

Plaintiff designates: Richmond
County as the place of trialBasis of venue is:
CPLR §504(3)The place of occurrence:
2542 Arthur Kill Road
Staten Island, NY 10312

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To the above-named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the plaintiff's attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Defendants' addresses:

CITY OF NEW YORK
100 Church Street
New York, NY 10007JANINE SARTINI
c/o NYPD 123rd Precinct
116 Main Street
Staten Island, NY 10307JONATHAN BAER
c/o NYPD 123rd Precinct
116 Main Street
Staten Island, NY 1030Dated: New York, New York
May 3, 2024BRETT H. KLEIN, ESQ., PLLC
Attorneys for the Plaintiff DIANE HAYDEN
305 Broadway, Suite 600
New York, New York 10007
(212) 335-0132By: Brett Klein
BRETT H. KLEIN

SUPREME COURT STATE OF NEW YORK
COUNTY OF RICHMOND

-----X

DIANE HAYDEN

VERIFIED COMPLAINT

Plaintiff,

Index No.:

-against-

Jury Trial Demanded

CITY OF NEW YORK, JANINE SARTINI,
Individually, JONATHAN BAER, Individually, and
JOHN and JANE DOE 1 through 10, Individually,
(the names John and Jane Doe being fictitious, as the
true names are presently unknown),

Defendant.

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Plaintiff, DIANE HAYDEN, by her attorneys, BRETT H. KLEIN, ESQ., PLLC, as and for
his Verified Complaint, alleges as follows:

1. Plaintiff DIANE HAYDEN is a seventy-six-year-old African American woman
residing in Staten Island, New York.

2. Defendant CITY OF NEW YORK was and is a municipal corporation duly
organized and existing under and by virtue of the laws of the State of New York.

3. Defendant CITY OF NEW YORK maintains the New York City Police Department
(hereinafter referred to as "NYPD"), a duly authorized public authority and/or police department,
authorized to perform all functions of a police department as per the applicable sections of the
aforementioned municipal corporation, CITY OF NEW YORK.

4. That at all times hereinafter mentioned, the individually named defendants,
JANINE SARTINI, JONATHAN BAER, and JOHN and/or JANE DOE 1 through 10, were duly
sworn police officers of said department and were acting under the supervision of said department
and according to their official duties.

5. That at all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State of New York and/or the City of New York.

6. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant CITY OF NEW YORK.

7. The causes of action alleged herein arose in the State of New York, County of the Richmond.

8. This action falls within one or more of the exceptions as outlined in C.P.L.R. 1602.

9. The cause of action alleged herein arose in the State of New York, County of Richmond.

10. Within ninety (90) days after the claim herein accrued, plaintiff duly served upon, presented to, and filed with the CITY OF NEW YORK, a Notice of Claim setting forth all facts and information required under the General Municipal Law 50-e.

11. Defendant CITY OF NEW YORK has wholly neglected or refused to make an adjustment or payment thereof and more than thirty (30) days have elapsed since the presentation of such claim as aforesaid.

12. This action was commenced within one (1) year and ninety (90) days after the cause of action herein accrued.

13. Plaintiff has complied with all conditions precedent to maintaining the instant action.

FACTS

14. On October 4, 2022, at approximately 1:20 p.m., NYPD defendants JANINE SARTINI and JONATHAN BAER, in the presence of other NYPD officers, arrested plaintiff outside her home, located at 2542 Arthur Kill Road, Staten Island, New York.

15. Defendants SARTINI and BAER lacked probable cause to arrest plaintiff.

16. During the arrest, defendant SARTINI and BAER pulled plaintiff's arms and defendant BAER made offensive physical contact with plaintiff, including forcefully pushing and/or punching her in the arm as he put plaintiff in a police car.

17. Plaintiff was transported to the 123rd precinct and thereafter to Staten Island University Hospital Ocean Breeze (North) where she remained in police custody.

18. Plaintiff was transferred from the hospital in police custody to the 120th precinct where she remained overnight until 10:30 a.m. the next day.

19. On October 5, 2022, at around noon, plaintiff was transported to Richmond County Criminal Court and arraigned on false allegations levied against her by an unreliable witness, and was directed to return to court under conditions of release set by the court which restricted her liberty.

20. The defendant officers initiated said prosecution with malice, and otherwise caused the prosecution to be commenced against plaintiff without probable cause.

21. Defendants created and manufactured false evidence which was conveyed to the Richmond County District Attorney's office by defendant SARTINI.

22. As a result of defendants' actions, plaintiff was subjected to offensive physical contact, falsely arrested, maliciously prosecuted, denied her right to fair trial, and otherwise deprived of her liberty.

23. Plaintiff was compelled to return to court on approximately four occasions until on February 3, 2023 all charges levied against her were dismissed and sealed.

24. All of the aforementioned acts deprived plaintiff DIANE HAYDEN of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. §1983.

25. All of the above occurred as a direct result of the unconstitutional policies, customs or practices of the City of New York, including, without limitation, the inadequate screening, hiring, retaining, training and supervising its employees, and pursuant to customs or practices of failure to train, monitor, or discipline officers with respect to completing thorough investigations before executing an arrest, using unreliable information as basis for an arrest, and swearing to said unreliable information to initiate a prosecution.

26. The aforesaid event is not an isolated incident. Defendant CITY OF NEW YORK is aware (from lawsuits, notices of claims, and complaints filed with the NYPD'S Internal Affairs Bureau, and the CITY OF NEW YORK'S Civilian Complaint Review Board) that many NYPD officers, including the defendants, are insufficiently trained regarding conducting a thorough investigation before initiating an arrest and thus engage in a practice of falsification to justify unlawful arrests.

27. For instance, in another civil rights action filed in this court involving false allegations by NYPD officers, Judge Jack B. Weinstein pronounced:

Informal inquiry by the court and among judges of this court, as well as knowledge of cases in other federal and state courts, has revealed anecdotal evidence of repeated, widespread falsification by arresting police officers of the New York City

Police Department. . . . [T]here is some evidence of an attitude among officers that is sufficiently widespread to constitute a custom or policy by the city approving illegal conduct of the kind now charged. *Colon v. City of New York, et. al.*, 2009 WL 4263362, *2 (E.D.N.Y. 2009).

28. Defendant CITY OF NEW YORK is further aware that such improper training has often resulted in a deprivation of civil rights. Despite such notice, defendant CITY OF NEW YORK has failed to take corrective action. This failure caused the officers in the present case to violate the plaintiffs' civil rights.

29. Moreover, upon information and belief, defendant CITY OF NEW YORK was aware, prior to the incident, that the individual defendants lacked the objectivity, temperament, maturity, discretion, and disposition to be employed as police officers. Despite such notice, defendant CITY OF NEW YORK has retained these officers, and failed to adequately train and supervise them.

30. All of the aforementioned acts deprived plaintiff DIANE HAYDEN of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. §1983.

31. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, with the entire actual and/or apparent authority attendant thereto.

STATE LAW CLAIMS

AS AND FOR A FIRST CAUSE OF ACTION (Malicious Prosecution)

32. Plaintiff repeats, reiterates, and realleges each and every allegation contained in

paragraphs numbered “1” through “31” with the same force and effect as if fully set forth herein.

33. The defendant officers initiated, commenced, and continued a malicious prosecution against plaintiff DIANE HAYDEN.

34. Defendant City, as employer of the individually named defendant officers, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

35. The defendant caused plaintiff DIANE HAYDEN to be prosecuted until the charges were dismissed and sealed and otherwise deemed a legal nullity on or about February 3, 2023.

36. As a result of the foregoing, plaintiff DIANE HAYDEN is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys’ fees, costs and disbursements of this action.

AS AND FOR A SECOND CAUSE OF ACTION
(Violation of N.Y.C. Administrative Code §§ 8-801 through 8-807)

37. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered “1” through “36” with the same force and effect as if fully set forth herein.

38. Plaintiff DIANE HAYDEN’s rights to be free from false arrest, excessive force, malicious prosecution and right to fair trial were violated by the defendants under New York City Administrative Code § 8-801 through 8-807.

39. The City of New York is liable as the employer of the defendants under New York City Administrative Code § 8-803(b).

40. Qualified immunity is no defense to this claim.

41. As a result of the foregoing, plaintiff DIANE HAYDEN is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys’ fees, costs and

disbursements of this action.

AS AND FOR A THIRD CAUSE OF ACTION

(Negligent Screening, Hiring, and Retention under the laws of the State of New York)

42. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraph numbered “1” through “41” with the same force and effect as if fully set forth herein.

43. Upon information and belief, defendant CITY OF NEW YORK failed to use reasonable care in the screening, hiring and retention of the aforesaid defendants who falsely arrested plaintiff DIANE HAYDEN.

44. Defendant CITY OF NEW YORK knew, or should have known in the exercise of reasonable care, the propensities of the individual defendants to engage in the wrongful conduct heretofore alleged in this Complaint.

45. As a result of the foregoing, plaintiff DIANE HAYDEN is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys’ fees, costs and disbursements of this action.

AS AND FOR A FOURTH CAUSE OF ACTION

(Negligent Training and Supervision under the laws of the State of New York)

46. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered “1” through “45” with the same force and effect as if fully set forth herein.

47. Upon information and belief, the defendant CITY OF NEW YORK failed to use reasonable care in the training and supervision of the aforesaid defendants who falsely arrested, maliciously issued criminal process to plaintiff, and who deprived plaintiff of her right to a fair trial.

48. As a result of the foregoing, plaintiff DIANE HAYDEN is entitled to compensatory

damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

FEDERAL CLAIMS

AS AND FOR A FIFTH CAUSE OF ACTION
(False Arrest/Unlawful Imprisonment under 42 U.S.C. § 1983)

49. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered "1" through "48" with the same force and effect as if fully set forth herein.

50. Defendant officers arrested plaintiff DIANE HAYDEN without probable cause, causing her to be detained against her will for an extended period of time and subjected to physical restraints.

51. Defendant officers caused plaintiff DIANE HAYDEN to be falsely arrested and unlawfully imprisoned.

52. As a result of the foregoing, plaintiff DIANE HAYDEN is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

AS AND FOR A SIXTH CAUSE OF ACTION
(Malicious Prosecution under 42 U.S.C. § 1983)

53. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "52" with the same force and effect as if fully set forth herein.

54. Defendants initiated, commenced, and continued a malicious prosecution against plaintiff DIANE HAYDEN.

55. Defendants caused plaintiff DIANE HAYDEN to be prosecuted without any

probable cause until the charges were dismissed on or about February 2, 2023.

56. As a result of the foregoing, plaintiff DIANE HAYDEN is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

AS AND FOR A SEVENTH CAUSE OF ACTION
(Violation of Right to Fair Trial under 42 U.S.C. § 1983)

57. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered "1" through "56" with the same force and effect as if fully set forth herein.

58. Defendant officers reported false allegations against plaintiff DIANE HAYDEN and withheld exculpatory information known to them.

59. Defendants utilized the false allegations against plaintiff DIANE HAYDEN in legal proceedings and withheld evidence from said proceeding.

60. As a result of defendants' false allegations which defendants conveyed to the Richmond County District Attorney's Office and as a result of their withholding of exculpatory evidence, plaintiff DIANE HAYDEN suffered a violation of her constitutional rights to a fair trial, as guaranteed by the United States Constitution, and she was deprived of her liberty.

61. As a result of the foregoing, plaintiff DIANE HAYDEN is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

AS AND FOR AN EIGHTH CAUSE OF ACTION
(Failure to Intervene under 42 U.S.C. § 1983)

62. Plaintiff repeats, reiterates, and realleges each and every allegation contained in

paragraphs numbered “1” through “61” with the same force and effect as if fully set forth herein.

63. The individually named defendants had an affirmative duty to intervene on behalf of plaintiff DIANE HAYDEN, whose constitutional rights were being violated in their presence by other officers.

64. The individually named defendants failed to intervene to prevent the unlawful conduct described herein.

65. As a result of the foregoing, plaintiff DIANE HAYDEN was falsely arrested, denied her right to a fair trial, and maliciously prosecuted.

66. As a result of the foregoing, plaintiff DIANE HAYDEN is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys’ fees, costs and disbursements of this action.

AS AND FOR A NINTH CAUSE OF ACTION
(Supervisory Liability under 42 U.S.C. § 1983)

67. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered “1” through “66” with the same force and effect as if fully set forth herein.

68. The supervisory defendants personally caused plaintiff’s constitutional injury by being deliberately or consciously indifferent to the rights of others in failing to properly supervise and train their subordinate employees.

69. As a result of the foregoing, plaintiff DIANE HAYDEN is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys’ fees, costs and disbursements of this action.

AS AND FOR A TENTH CAUSE OF ACTION
(Municipal Liability under 42 U.S.C. § 1983)

70. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered “1” through “69” with the same force and effect as if fully set forth herein.

71. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure, or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

72. The aforementioned customs, policies, usages, practices, procedures and rules of defendant CITY OF NEW YORK via the New York City Police Department included, but were not limited to, inadequate screening, hiring, retaining, training and supervising its employees that was the moving force behind the violation of plaintiff DIANE HAYDEN’S rights as described herein. As a result of the failure of CITY OF NEW YORK to properly recruit, screen, train, discipline, and supervise its officers, including the individual defendants, defendant CITY OF NEW YORK has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.

73. The foregoing customs, policies, usages, practices, procedures, and rules of the CITY OF NEW YORK and the New York City Police Department constituted deliberate indifference to the safety, well-being, and constitutional rights of plaintiff DIANE HAYDEN.

74. The foregoing customs, policies, usages, practices, procedures, and rules of the CITY OF NEW YORK and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by plaintiff DIANE HAYDEN as alleged herein.

75. The foregoing customs, policies, usages, practices, procedures, and rules of the CITY OF NEW YORK and the New York City Police Department were the moving force behind

the Constitutional violations suffered by plaintiff DIANE HAYDEN as alleged herein.

76. As a result of the foregoing customs, policies, usages, practices, procedures, and rules of the CITY OF NEW YORK and the New York City Police Department, plaintiff DIANE HAYDEN was unlawfully arrested, detained, and maliciously prosecuted.

77. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating plaintiff DIANE HAYDEN'S constitutional rights.

78. All of the foregoing acts by defendants deprived plaintiff DIANE HAYDEN of federally protected rights, including, but not limited to, the right:

- A. To be free from false arrest/unlawful imprisonment;
- B. To be free from malicious prosecution;
- C. To be free from the violation of the right to fair trial; and
- D. To be free from failure to intervene.

79. As a result of the foregoing, plaintiff DIANE HAYDEN is entitled to compensatory damages in an amount to be fixed by a jury, and is further entitled to punitive damages against the individual defendants in an amount to be fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

WHEREFORE, plaintiff DIANE HAYDEN demands judgment and prays for the following relief against the defendant:

- (A) full and fair compensatory damages in an amount to be determined by a jury;
- (B) punitive damages in an amount to be determined by a jury;
- (C) reasonable attorneys' fees and the costs and disbursements of this action; and
- (D) such other and further relief as appears just and proper.

Dated: New York, New York
May 3, 2024

BRETT H. KLEIN, ESQ., PLLC
Attorneys for Plaintiff DIANE HAYDEN
305 Broadway, Suite 600
New York, New York 10007
(212) 335-0132

By: Brett Klein
BRETT H. KLEIN

ATTORNEY VERIFICATION

BRETT H. KLEIN, an attorney duly admitted to practice before the Courts of the State of New York, affirms under penalty of perjury pursuant to Rule 2106:

Affirmant is the attorney for the claimant, has read the foregoing Summons and Verified Complaint, and knows the contents thereof; the same is true to affirmant's own knowledge, except as to matters therein stated to be alleged upon information and belief, and as to those matters, affirmant believes them to be true.

This verification is made by the affirmant and not by the claimant because said plaintiff is not within the county where your affirmant has his office.

The grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge are based upon information contained in a file maintained in affirmant's office and based on conversations with plaintiff. the following to be true under the penalties of perjury:

Dated: New York, New York
May 3, 2024

Brett Klein

BRETT H. KLEIN

SUPREME COURT STATE OF NEW YORK
COUNTY OF RICHMOND

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DIANE HAYDEN,

Plaintiff,

-against-

Index No.:

CITY OF NEW YORK, JANINE SARTINI,
Individually, JONATHAN BAER, Individually, and
JOHN and JANE DOE 1 through 10, Individually,
(the names John and Jane Doe being fictitious, as the
true names are presently unknown),

Defendants.

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SUMMONS AND VERIFIED COMPLAINT

BRETT H. KLEIN, ESQ., PLLC
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305 Broadway, Suite 600
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